

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #05	CCRB Case #: 201408556	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 08/19/2014 11:40 PM, Wednesday, 08/20/2014 12:00 AM	Location of Incident: In front of 152 Avenue D and inside the PSA 4 Precinct stationhouse	18 Mo. SOL 2/19/2016	Precinct: 09
Date/Time CV Reported Wed, 08/20/2014 12:25 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 08/20/2014 12:25 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Louis Pannone	18534	914906	PSA 4
2. POM Mario Rodriguez	10590	939348	PSA 4

Officer(s)	Allegation	Investigator Recommendation
A . POM Mario Rodriguez	Abuse: PO Mario Rodriguez stopped § 87(2)(b) in front of 152 Avenue D in Manhattan.	A . Exonerated
B . POM Mario Rodriguez	Abuse: PO Mario Rodriguez frisked § 87(2)(b) in front of 152 Avenue D in Manhattan.	B . Substantiated
C . POM Louis Pannone	Discourtesy: PO Louis Pannone spoke discourteously to § 87(2)(b) and § 87(2)(b) in front of 152 Avenue D and inside the PSA 4 Stationhouse in Manhattan.	C . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(4-b) § 87(2)(g)	

Case Summary

On August 19, 2014, at approximately 11:40 p.m., § 87(2)(b) and § 87(2)(b) were near a deli at 152 Avenue D. PO Louis Pannone and PO Mario Rodriguez of PSA 4 were conducting an investigation of theft of services near the entrance of the deli on behalf of a taxi driver, who was also at the scene. Just after PO Rodriguez entered the deli, the driver told him that a man just outside the deli tried to hit him, and gave PO Rodriguez a brief description of the man (encl. 5-R). PO Rodriguez saw § 87(2)(b) who matched the description, at the entrance of the deli. PO § 87(2)(b) then stopped **(Allegation A)** and frisked § 87(2)(b) **(Allegation B)** (encl. 3-A). As a result, § 87(2)(b) and § 87(2)(b) asked PO Rodriguez many times why he was frisking § 87(2)(b). PO Pannone left the deli, and allegedly said to § 87(2)(b) “get the fuck out of here,” “don’t fucking tell me how to do my job” **(Allegation C)** (encl. 3-A). § 87(2)(b) then cursed at PO Pannone, and PO Pannone then said, “Fuck me? Fuck me? Yeah?” **(within Allegation C)** (encl. 4-E). § 87(2)(b) was then arrested and charged with § 87(2)(b) (encl. 6-Z). § 87(2)(b) went to the PSA 4 Stationhouse to ascertain when § 87(2)(b) would be released. At the PSA 4 Stationhouse, PO Pannone allegedly stated to § 87(2)(b) “You don’t tell an officer of the law to go fuck themselves. If you had told me to go fuck myself, you would have been arrested, not her” **(within Allegation C)** (encl. 4-E). § 87(2)(b) was not arrested or issued a summons.

Mediation, Criminal, and Civil Histories

This case was deemed unsuitable for mediation due to § 87(2)(b)'s arrest. § 87(2)(b) [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(b) As of February 13, 2015, the request for a notice of claim in relation to this incident is pending.

Civilian and Officer CCRB Histories

- PO Rodriguez has been a member of service for nine years, and he has one prior case from 2006 in which a stop allegation was exonerated (encl. 2-A). § 87(2)(g)
- PO Pannone has been a member of service for 20 years, and he has had one prior case from 1997 in which various allegations were unfounded (encl. 2-B). § 87(2)(g)
- This is the first complaint involving either § 87(2)(b) or § 87(2)(b) (encl. 2-C and encl. 2-D).
- § 87(2)(b) was involved in a case in 2007 as a witness. The disposition of this case was unfounded (encl. 2-E)

Potential Issues

The only complainant, victim, or witness in this case who cooperated with the investigation and provided a verified statement was § 87(2)(b) who witnessed the entirety of the incident, including the frisk of § 87(2)(b). Multiple contact attempts were made to all additional victims and witnesses in this case. To date, these individuals have not responded.

§ 87(2)(b) did not appear for an interview until a month and a half after the incident date. The Housing Works next to the incident location was contacted, and a representative there stated that they only retain security video footage for twenty-four hours. Consequently, video footage could not be obtained for this incident.

Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)

§ 87(2)(g)

Identification of Subject Officers

PO Pannone acknowledged interacting with § 87(2)(b). He did not recognize § 87(2)(b) when shown a photograph of her, but he did recall interacting with a female at the scene who behaved in the way that § 87(2)(b) stated that she behaved. § 87(2)(b) obtained PO Pannone's and PO Rodriguez's names and shield numbers at the PSA 4 stationhouse. PO Rodriguez acknowledged interacting with § 87(2)(b) though he did not know § 87(2)(b)'s name.

Allegation A—Abuse of Authority: PO Mario Rodriguez stopped § 87(2)(b) in front of 152 Avenue D in Manhattan.

It is undisputed that PO Rodriguez stopped § 87(2)(b). PO Rodriguez stopped § 87(2)(b) after a taxi driver who was present at the scene told him that a male wearing dark pants and a dark shirt tried to hit him in front of the deli he had just entered. § 87(2)(b) saw § 87(2)(b) identified by the investigation, as the door of the deli was swinging shut. He stopped § 87(2)(b) who was wearing a dark shirt and dark pants. There were no other males who fit this description in the immediate vicinity. PO Rodriguez requested § 87(2)(b)'s identification, which § 87(2)(b) refused to provide (encl. 5-R).

Officers must have reasonable suspicion of criminality before stopping an individual. *People v. DeBour*, 40 N.Y. 2d. 201 (1976) (encl. 1-A to encl.1-G). PO Rodriguez stopped § 87(2)(b) after he saw that § 87(2)(b) both matched a description provided by an individual and was present near where the alleged crime took place. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **exonerated**.

Allegation B—Abuse of Authority: PO Mario Rodriguez frisked § 87(2)(b) in front of 152 Avenue D in Manhattan.

It is undisputed that PO Rodriguez frisked § 87(2)(b). PO Rodriguez exited the deli to stop § 87(2)(b). He stepped outside and asked § 87(2)(b) for identification, then had him stand against the wall with his hands above his head so that he could see them. He then frisked § 87(2)(b)'s waistband for any weapons. § 87(2)(b) who was present for the entire incident, witnessed the frisk. PO Rodriguez did not recall seeing any bulges

on § 87(2)(b)'s person, nor did he identify any behaviors suggestive of being armed that may have precipitated the frisk. PO Rodriguez stated that he frisked § 87(2)(b) because he did not know if he carried a weapon on his person and he matched the description of a perpetrator of a violent crime. After frisking § 87(2)(b) the driver then said that § 87(2)(b) was not the male who tried to hit him, at which point, PO Rodriguez released § 87(2)(b) (encl. 5-R).

In order to frisk an individual, an officer must have reasonable suspicion that an individual is armed People v. DeBour 40 N.Y. 2d. 201 (1976) (encl. 1-A to encl. 1-G), and is therefore a threat to the safety of the officer or another individual.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **substantiated**.

Allegation C—Discourtesy: PO Louis Pannone spoke rudely to § 87(2)(b) and § 87(2)(b) in front of 152 Avenue D and inside the PSA 4 Stationhouse in Manhattan.

§ 87(2)(b) testified that PO Pannone said to her, “Don’t tell me how to do my fucking job,” “I know how to do my fucking job,” “Get the fuck out of here,” “Fuck me, fuck me, yeah?” in front of 152 Avenue D. At the PSA 4 Stationhouse, he allegedly stated, “You don’t tell an officer of the law to go fuck themselves. If you had told me to go fuck myself, you would have been arrested, not her” (encl. 4-E). Two unverified phone statements—those of § 87(2)(b) and § 87(2)(b)—also feature PO Pannone using some permutation of “fuck” during the incident

(encl. 4-B and encl. 4-K). § 87(2)(b) in an unverified phone statement, did not state that any officer used profanity (encl. 4-L).

PO Pannone did not recall making these statements (encl. 5-H). In addition, PO Rodriguez stated that no officer used any variation on the word “fuck” when speaking to civilians (encl. 5-R).

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b) § 87(2)(g)

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Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
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Reviewer: _____
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